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COPY

JOURNAL of the PROCEEDINGS of the CITY COUNCIL of the CITY of CHICAGO, ILLINOIS

Regular Meeting -- Wednesday, May 14, 2008

at 10:00 A.M.

(Council Chambers -- City Hall -- Chicago, Illinois)

OFFICIAL RECORD.

VOLUME I

RICHARD M. DALEY
Mayor

MIGUEL DEL VALLE
City Clerk

APPROVAL OF JOURNAL OF PROCEEDINGS.

JOURNAL (April 9, 2008)

The City Clerk submitted the printed official *Journal of the Proceedings of the City Council of the City of Chicago*, for the regular meeting held on Wednesday, April 9, 2008, at 10:00 A.M., signed by him as such City Clerk.

Alderman Burke moved to *Approve* said printed official *Journal* and to dispense with the reading thereof. The question being put, the motion *Prevailed.*

UNFINISHED BUSINESS.

None.

MISCELLANEOUS BUSINESS.

Committee Discharged -- REPEAL OF TITLE 7, CHAPTER 39, SECTIONS 001 AND 005 OF MUNICIPAL CODE OF CHICAGO WHICH PROHIBITED SALE OF FOIE GRAS BY FOOD ESTABLISHMENTS.

Alderman Tunney moved to *Discharge* the Committee on Committees, Rules and Ethics from further consideration of an ordinance repealing Title 7, Chapter 39, Sections 001 and 005 of the Municipal Code of Chicago which prohibited the sale of foie gras by food establishments. The motion *Prevailed* by yeas and nays as follows:

Yeas -- Aldermen Flores, Fioretti, Dowell, Lyle, Harris, Beale, Pope, Balcer, Cárdenas, Olivo, Burke, Foulkes, Thompson, Thomas, Lane, Rugai, Cochran, Brookins, Zalewski, Dixon, Solis, Burnett, Carothers, Reboyras, Suarez, Waguespack, Mell, Austin, Mitts, Allen, Laurino, O'Connor, Doherty, Daley, Tunney, Levar, Shiller, Stone -- 38.

Nays -- Aldermen Preckwinkle, Muñoz, E. Smith, Colón, Moore -- 5.

Thereupon, on motion of Alderman Tunney, the said proposed ordinance was *Passed* by yeas and nays as follows:

Yeas -- Aldermen Flores, Fioretti, Dowell, Lyle, Harris, Beale, Pope, Balcer, Cárdenas, Olivo, Burke, Foulkes, Thompson, Thomas, Lane, Rugai, Cochran, Brookins, Zalewski, Dixon, Solis, Burnett, Carothers, Reboyras, Mell, Austin, Banks, Mitts, Laurino, O'Connor, Doherty, Reilly, Daley, Tunney, Levar, Shiller, Stone -- 37.

Nays -- Aldermen Preckwinkle, Muñoz, E. Smith, Waguespack, Colón, Moore -- 6.

Alderman Carothers moved to reconsider the foregoing vote. The motion was lost.

The following is said ordinance as passed:

Be It Ordained by the City Council of the City of Chicago:

SECTION 1. Chapter 7-39 of the Municipal Code of the City of Chicago is hereby amended by deleting the stricken language, as follows:

~~7-39-001 Food Establishments -- Banned Items~~

~~All food dispensing establishments as defined in Section 4-8-010 of the Municipal Code shall prohibit the sale of foie gras.~~

~~7-39-005 Violation -- Penalty~~

~~Any business that violates any provision of this Chapter shall be fined not less than $250.00 and no more than $500.00 for each offense and a separate and distinct offense shall be deemed to have been committed for each and every day on which any business shall be guilty of such violation.~~

SECTION 2. This ordinance shall be in full force and effect upon passage and publication.